

Mr. Steven Bradley Mell, pro se
71587-050
FCI Allenwood Low
Gregg Unit B1
PO Box 1000
White Deer, PA 17887

Date: Oct 12, 2023

B.B.,

Plaintiff

v.

S. BRADLEY MELL, KIMBERLY RUGGLES
MELL, individually, and as guardian of
W.M., W.H. MELL ASSOCIATES, INC.,
GULFSTREAM CM, LLC, GULFSTREAM GM, LLC,
AERO CARE SERVICES, LLC, EMILY MELL,
ELIZA MELL, STEVEN BRADLEY MELL 2012
FAMILY TRUST, KIMBERLY MELL 2012
FAMILY TRUST, MOUNTAINSIDE SECURITIES
LLC,

Defendants.

Steven Bradley Mell,

Third-Party Plaintiff,

v.

D.D. and E.E.

Third-Party Defendants.

SUPERIOR COURT OF NEW JERSEY
ESSEX COUNTY: LAW DIVISION
DOCKET NO. ESX-L-7200-19

CIVIL ACTION

DEFENDANT STEVEN BRADLEY MELL,
THIRD-PARTY COMPLAINT AGAINST
D.D. AND E.E. THE PARENTS OF
B.B.

THIRD-PARTY COMPLAINT

Third-Party Plaintiff Steven Bradley Mell, pro se, for its Third-Party complaint against Plaintiff B.B.'s parents, D.D. (also referred to as "Plaintiff's father") and E.E. (also referred to as "Plaintiff's mother,") and collectively with D.D., "Plaintiff's parents"), allege as follows:

INTRODUCTION

1. Plaintiff filed this action against defendant Steven Bradley Mell arising out of sexual abuse that Plaintiff alleges to have suffered at Mr. Mell's hands while she was a minor and Mr. Mell was an adult in his 50s. Plaintiff has since sued eleven other defendants who had no interaction with Plaintiff for negligence and, as to the KRM Trust, receipt of fraudulent transfers.

2. In her Complaint, Plaintiff paints a picture of Mr. Mell as a charming, wealthy man who showered her and her family with free rides on his private plane and helicopter, which, unbeknownst to Plaintiff and her family, was simply a ruse to get close to Plaintiff and sexually abuse her. Toward that end, Plaintiff herself recounts various plane rides she took together with Mr. Mell and her own family, including her parents and her older and younger sisters, beginning in the summer of 2016.

3. To convey a high level of disgust for the Court (and the media, to which the Complaint promptly made its way), the Complaint refers to one such plane ride where Mr. Mell allowed Plaintiff, her mother and her younger sister to take turns sitting in the cockpit with Mr. Mell.

4. But the Complaint conspicuously omits that all of these interactions Plaintiff had with Mr. Mell and her family took place **after** she, her parents and her younger sister found out that Mr. Mell had a sexual relationship with Plaintiff's oldest sister, C.C., who was just **17 years old** at the time, while Mr. Mell was in his late 40s.

5. Plaintiff's mother claimed to have been "distraught" and even bedridden after learning of Mr. Mell's relationship with Plaintiff's older sister, before which Plaintiff's parents were nothing more than cordial acquaintances with Mr. Mell and his wife. But, astonishingly, it was not until **after** Plaintiff's parents learned of Mr. Mell's involvement with their then-teenage daughter that they formed a closer than ever relationship with him and, as Plaintiff herself alleges, allowed him to become an integral part of their family (even providing him the security alarm code to their house, where Plaintiff's mother would watch Mr. Mell through their home camera and playfully communicate with him while he was feeding the family dog).

6. The answer to what would otherwise be unexplainable conduct on Plaintiff's parents' part, unfortunately, lies in the numerous, significant financial benefits they enjoyed from Mr. Mell that allowed them to keep up with the Joneses: tens of thousands of dollars in cash and investments, tuition payments for Plaintiff's expensive college preparatory school, membership

in an exclusive invite-only social club, and various other gifts including box-seat concert tickets, free private plane and helicopter rides, fully paid, private flying lessons for Plaintiff and expensive gifts for the family.

7. Unsurprisingly, then, when Plaintiff's mother learned as early as July 2017 that Plaintiff was having an inappropriate relationship with Mr. Mell, her mother's biggest concern was not her daughter's safety. It was whether Mr. Mell was "ready to be done with" Plaintiff's family - a subject of numerous text exchanges between Plaintiff and her mother. *But not once did Plaintiff's parents take steps to prevent Plaintiff from being sexually abused by Mr. Mell.* Instead, they helped create and foster the very situation upon which the Complaint is based.

8. Mr. Mell was eventually arrested because Plaintiff's friend alerted their school to the affair on December 3, 2017. Despite knowing about Plaintiff's and Mr. Mell's relationship before that date, Plaintiff's parents did not inform the police. Even when the authorities were alerted, the first and main order of business appeared to have been trying to get money from Mr. Mell and using the criminal charges as leverage to do so. When that plan failed, this lawsuit followed.

9. In the event that Steven Bradley Mell is required to pay damages to Plaintiff arising out of the underlying sexual abuse allegations or alleged role in the underlying alleged sexual abuse, then certainly Plaintiff's parents should be held to contribute to any such damages as directed **tortfeasors**, who at best negligently created a dangerous situation in their household and willfully or wantonly failed to supervise and protect Plaintiff and prevent Mr. Mell's alleged sexual abuse, and at worst knowingly permitted and acquiesced in the abuse.

FACTUAL BACKGROUND¹

14. On or about October 2, 2019, Plaintiff B.B. commenced this lawsuit against Mr. Mell asserting numerous claims arising out of an alleged sexual relationship between Mr. Mell and Plaintiff that took place from June through November 2017, while Plaintiff was between 15 and 16 years old and Mr. Mell was a married, middle-aged man.²

15. In addition to Mr. Mell, Plaintiff sued eleven other defendants in this lawsuit with whom she does not allege to have interacted directly in any capacity, including Gulfstream. Plaintiff alleges that some of those defendants are liable for negligence, including for failing to prevent the sexual acts in question.

A. Plaintiff's Parents Learn in Early 2016 that Plaintiff's Older, Then- 17-Year-Old Sister Was Having a Sexual Relationship with Mr. Mell

16. The relationship between Mr. Mell and Plaintiff's family originated with Plaintiff's older sister (C.C.) and Mr. Mell's daughter. Both met during their first year in high school in or around 2012 and became best friends.

¹ The allegations herein are generally plead upon information and belief and are largely based on documents and testimony received in discovery and Mr. Mell's recounting of the underlying events.

² Plaintiff filed an Amended Complaint on April 17, 2020 and a Second Amended Complaint on December 13, 2021.

17. C.C. spent a lot of time with the Mell family during her friendship with Mr. Mell's daughter, including vacations and sleepovers at the Mell household. C.C. also worked as a "house helper" for the Mell family and babysat Mr. Mell's son, services for which Mr. Mell paid C.C.

18. In the summer of 2015, C.C. and Mr. Mell developed a sexual relationship. At the time, C.C. was only 17 years old and still in high school.

19. At some point after their relationship began in 2015, Mr. Mell gave C.C. a credit card in one of Mr. Mell's company's names. C.C. charged thousands of dollars to that credit card through fall of 2017 (when C.C. was in college), including, but not limited to, several large purchases at Bloomingdales, Chanel, Gucci, Aritzia and Bergdorf Goodman, hotel rooms, train and plane tickets and day-to-day living expenses.

20. In or around early February of 2016, Plaintiff's mother learned that Mr. Mell and C.C. were engaged in an inappropriate sexual relationship. C.C. was still just 17 years old at the time. Plaintiff's mother learned about the relationship through her mother (Plaintiff's and C.C.'s grandmother), after an in-home camera system in the grandmother's home captured C.C. with an older man in her home. The grandmother informed Plaintiff's mother.

21. When Plaintiff's mother found out about the relationship, she did not immediately tell Plaintiff's father, nor did she ever view the home video. Instead, she met Mr. Mell at a social club soon after she found out about the relationship.

22. During this meeting, Mr. Mell expressly confirmed to Plaintiff's mother that he did in fact have an inappropriate romantic relationship with C.C. and told Plaintiff's mother that he had feelings for C.C.

23. C.C. joined her mother and Mr. Mell at the private club later that day and told her mother that she had feelings for Mr. Mell. *Plaintiff's mother did not tell or even suggest to Mr. Mell that he end his relationship with C.C.*

24. Plaintiff's mother waited approximately two weeks to tell Plaintiff's father about the relationship.

25. Plaintiffs' parents did not alert the authorities of Mr. Mell's sexual contact with their 17-year-old daughter, commence any legal action against Mr. Mell³ or tell Mr. Mell to stay away from their teenage daughter. In fact, Plaintiff's mother

³ While the age of consent under the criminal sexual assault statute is 16 or 18 depending on the circumstances, the Child Sexual Abuse Act, under which Plaintiff brings her claims against Mr. Mell, defines "sexual abuse" as "an act of sexual contact or sexual penetration between a child under the age of 18 years and an adult." N.J.S.A. 2A:61B-1(a)(1) (emphasis added). New Jersey's passage of the CSAA is obviously a recognition of the harm inherent in children under age 18 who are the target of or otherwise engage in sexual acts with an adult - something Plaintiff's parents recklessly failed to recognize.

admitted that she "definitely believed [C.C.] was in love with Mr. Mell."

26. Plaintiff and her younger sister learned of C.C. and Mr. Mell's relationship shortly thereafter when they saw inappropriate text messages between C.C. and Mr. Mell on C.C.'s cellphone. Plaintiff and her younger sister were upset to learn about the relationship and disliked Mr. Mell because of it. Plaintiff's mother never reviewed these text messages.

27. Plaintiffs' parents were aware that their younger daughters had learned about their sister's relationship with Mr. Mell and knew they were upset about it.

B. Instead of Taking Steps to End the Relationship Between C.C. and Mr. Mell, Plaintiff's Parents Form a Close Relationship with Mr. Mell After Discovering His Relationship with C.C., Accepting Money and Gifts from Him and Allowing Him to be Around C.C. and Their Younger Daughters

28. Plaintiff's mother claimed that she was "devastated" and "in bed for days" when she found out about the relationship between C.C. and Mr. Mell.

29. Plaintiff's parents took no steps to end the relationship between Mr. Mell, who was in his late 40s, and their teenaged daughter.

30. *To the contrary, instead of driving Mr. Mell away, or forbidding him from seeing their children, Plaintiff's parents, who had little to no relationship with Mr. Mell prior to learning*

of his relationship with their teenaged daughter, went out of their way to develop a closer relationship with Mr. Mell and integrate him into their family after they found out about his inappropriate relationship with C.C.

31. In Spring of 2016, shortly after learning of C.C. and Mr. Mell's relationship, Plaintiff's parents attended a pre-prom party for C.C. at C.C.'s friend's house, along with Plaintiff and their youngest daughter. Mr. Mell and his family were also present because his eldest daughter was attending the same prom.

32. The family's relationship with Mr. Mell intensified well beyond the pre-prom party gathering. As described below, E.E. and D.D. not only accepted gifts, money and other valuable benefits from Mr. Mell after learning of the relationship, but allowed Mr. Mell to become closely enmeshed with their family, including Plaintiff and her younger sister. Plaintiff's mother, C.C. and Mr. Mell even had a group text where just the three of them exchanged messages and emails.

(i) Plaintiff's Mother Develops a Close, Personal Relationship with Mr. Mell, Meeting and Texting with Him and Giving Him Access to the Family Home

33. Plaintiff's mother also separately texted with Mr. Mell. In one such text message between Plaintiff's mother and Mr. Mell, Mr. Mell instructed Plaintiff's mother to relay a loving message to her daughter from Mr. Mell, who informed Plaintiff's

mother that he was away for the weekend with his wife and that C.C. was upset about it.

34. Among other things, Mr. Mell asked Plaintiff's mother to give C.C. a "hug, wink or just an I love [you] look for me." Mr. Mell then explained to Plaintiff's mother how sad he was going to be when C.C. left for college and how much he loved C.C.

35. Plaintiff's mother also spent time with Mr. Mell in person at his house, or sometimes at Plaintiff's family's home, at least once a week through 2017.

36. Plaintiff's mother even gave Mr. Mell the code to disarm the security system in Plaintiff's family's home so he could enter when he wished, including to feed the family dog when no one was home. Plaintiff's mother could apparently see Mr. Mell through her family's camera system and would playfully text Mr. Mell, "I can see you" or words to that effect when he was in their home.

37. Mr. Mell had other discussions with Plaintiff's mother in which she encouraged Mr. Mell to continue his relationship with C.C. while she was away at college.

38. Plaintiff felt distress about her family's involvement with Mr. Mell. According to her therapist's notes, on August 16, 2017, Plaintiff reported to her therapist that her relationship with her mother recently changed due to her mother's "increasing closeness w/older sister," and noted a "complicated situation w/friends of fam - particularly the father of that family." Still,

Plaintiff's father and Plaintiff's mother, who was supposedly "distraught" because of Mr. Mell's relationship with C.C., did nothing to protect her daughter and only continued to embrace Mr. Mell as part of the family.

(ii) Plaintiff and Her Family Go on Numerous Private Plane and Helicopter Rides with Mr. Mell

39. After finding out about C.C. and Mr. Mell's inappropriate relationship, Plaintiff's parents not only accompanied Mr. Mell on numerous flights on his private plane and helicopter, but also allowed Plaintiff and her younger sister to go on flights with Mr. Mell, and, in at least one instance, sit alone in the cockpit with him while Plaintiff's mother was on the plane.

40. The costs of these flights were significant, and these luxuries were provided courtesy of Mr. Mell at no cost to Plaintiff's family. They included:

- a. Summer of 2016: Mr. Mell took Plaintiff and some of her family members on flights on his private plane to Nantucket and Maine. Mr. Mell owned a home in Nantucket, and Plaintiff's family rented a home there during the summers of 2016 and 2017.
- b. Fall of 2016: When C.C. moved into college in Maine (at the same school Mr. Mell's daughter attended), Mr. Mell, D.D., Plaintiff and Plaintiff's younger sister flew up to the college with Mr. Mell in his plane, while C.C. drove up with her mother. Mr. Mell, Plaintiff's parents, Plaintiff and her younger sister thereafter flew home with Mr. Mell in his private plane back to New Jersey.

- c. Fall of 2016: Mr. Mell, Plaintiff and E.E. went for a ride around New York City in Mr. Mell's helicopter.
- d. Fall of 2016: Mr. Mell, his family and Plaintiff's parents and sisters flew together in Mr. Mell's private plane to "family weekend" at C.C.'s college.
- e. Spring of 2017: Mr. Mell flew Plaintiff's mother, Plaintiff and her younger sister up to C.C.'s college on his private plane for C.C.'s birthday. During this flight, Plaintiff's mother allowed Plaintiff and her younger sister to take turns sitting in the cockpit with Mr. Mell.
- f. June of 2017: On June 1, 2017, C.C. texted her mother and Plaintiff stating, "So brads going to fly us into the city on Saturday. Mom you're coming and [B.B] you're flying!!" On or about June 15, 2017, C.C. and E.E. went shopping in New York City and C.C. bought her mother an expensive handbag using Mr. Mell's credit card. Mr. Mell then flew with Plaintiff to New York City on his helicopter and picked up C.C. and E.E. and flew them back to New Jersey.

(iii) Plaintiff's Parents Allow Mr. Mell to Provide Some Flying Lessons to Plaintiff and to Pay for More of Plaintiff's Flying Lessons

41. In or around June 3, 2017, over a year after learning of Mr. Mell's relationship with her then-17-year-old daughter (C.C.), Plaintiff's mother allowed Mr. Mell to take Plaintiff to sign up for flying lessons. Plaintiff had never taken previous flying lessons.

42. Plaintiff's parents were aware that Mr. Mell was paying for Plaintiff's flying lessons entirely and allowed him to do so for at least several months.

43. At some point in June 2017, Mr. Mell texted Plaintiff's mother and requested her permission to allow Plaintiff to fly with him on his private plane to Princeton. Plaintiff's mother stunningly agreed.

44. Mr. Mell requested such permission from Plaintiff's mother on at least one other occasion, and he and Plaintiff's mother exchanged text messages demonstrating that Plaintiff's mother knew Plaintiff was flying with Mr. Mell.

45. Plaintiff's mother apparently recognized the impropriety of Mr. Mell's paying for Plaintiff's flying lessons and was concerned about Plaintiff telling her therapist about it, as demonstrated by the following exchange between Plaintiff and her mother on August 18, 2017:

Plaintiff's mother: Well can you tell me what you talked about. I mean just like in general

Plaintiff's mother: And did it help?

Plaintiff: **We talked about him**

Plaintiff's mother: Yes did it help

Plaintiff's mother: Him

Plaintiff's mother: ?

Plaintiff: **Mr. Mell**

Plaintiff's mother: Oh wow! Ok

Plaintiff: What

Plaintiff's mother: **Oh no. I just didn't know you were talking about that today.** But that's good

Plaintiff: Oh

Plaintiff: Yah we talked about that

[A few hours later]

. . .

Plaintiff's mother: **Hey quick question**

Plaintiff's mother: *Did you tell dr this morning about your flying lessons?*

Plaintiff: Yes

Plaintiff: Why

Plaintiff's mother: I was just wondering what he thought is that

Plaintiff's mother: Of that^

Plaintiff: He thought it was nice I guess

Plaintiff's mother: *You told him who was paying*

Plaintiff: No

Plaintiff's mother: That's what I'm talking about

Plaintiff: Oh well actually I might have

Plaintiff's mother: *He thought that was fine?*

Plaintiff: Yah I think

. . .

Plaintiff's mother: *I'm surprised*

Plaintiff: Surprised about what

Plaintiff: I am so confused

Plaintiff's mother: *That he thought it was fine*

Plaintiff's mother: But whatever

Plaintiff's mother: Just thinking about it

46. Plaintiff's mother was apparently more concerned about the reaction to Mr. Mell's paying for her daughter's flying lessons than the fact that a man in his 50s, who previously had an inappropriate sexual relationship with her other minor child, was paying for Plaintiff's private flying lessons (as well as other gifts and financial benefits).

(iv) *Mr. Mell Gives Thousands of Dollars to C.C. and E.E.*

47. In or around November 2016 (again, well after Plaintiff's parents learned about C.C.'s sexual relationship with Mr. Mell), Plaintiff's parents asked Mr. Mell to set up investment accounts for them with his investment firm because they understood he was a successful investment manager.

48. Mr. Mell deposited approximately \$25,000 into each of C.C. and Plaintiff's mother's investment accounts.

49. On or around July 27, 2017 - during the time Plaintiff alleges she and Mr. Mell were in a sexual relationship - Mr. Mell deposited a check in the amount of \$25,000 into Plaintiff's mother's Chase bank account.

50. Mr. Mell also gave Plaintiff's mother cash on several occasions after she told Mr. Mell that her family was facing financial challenges.

(v) *Mr. Mell Gives Various Concert Tickets and Other Gifts to Plaintiff's Family*

51. The extent, cost and ready acceptance by Plaintiff's family of the gifts and favors by Mr. Mell at a time following Plaintiff's parents' discovery of Mr. Mell's relationship with C.C., and while Plaintiff alleges her and Mr. Mell's relationship was in full force, is astonishing. These gifts and accommodations allowed Plaintiff's family to live a life of luxury they could not resist - unfortunately, at Plaintiff's ultimate expense - and included:

- a. 2016: In April 2016, Mr. Mell assisted Plaintiff's family in becoming members of the Essex Hunt Club, an exclusive, members-only social club to which Mr. Mell and his family belonged and on whose board Mr. Mell served at the time.
- b. June 2017: Mr. Mell attended a Zac Brown concert with Plaintiff, her two sisters and their parents. Mr. Mell paid for Plaintiff's and her family members' tickets and sat with them at the concert.

- c. Summer of 2017: Mr. Mell, Plaintiff and C.C. flew to Cape Cod on Mr. Mell's private plane and dropped C.C. off in Cape Cod, where C.C. was visiting friends and then joining her family for a vacation in a rental home in Nantucket. Mr. Mell and Plaintiff flew back alone together to New Jersey, and Plaintiff and her family thereafter went on a vacation to Nantucket, where they rented a home.
- d. Summer of 2017: While Plaintiff and her family were on vacation in Nantucket, Mr. Mell came over to Plaintiff's family's vacation rental home and gave Plaintiff a card and gift for her 16th birthday, in front of Plaintiff's mother and potentially other family members. That same day, D.D. and E.E. allowed Mr. Mell to take Plaintiff, C.C. and their friends on a ride around Nantucket in his new jeep.
- e. Summer of 2017: Plaintiff and her family (except for D.D.) flew home from their 2017 Nantucket trip with Mr. Mell on his private plane - as with all of these trips, courtesy of Mr. Mell.
- f. November/December of 2017: Mr. Mell came to Plaintiff's family's home and gave them tickets for box seats at a Garth Brooks concert and bottles of wine. Plaintiff and her parents attended the concert on December 3, 2017.
- g. 2017-2018: Mr. Mell paid for Plaintiff's school tuition because her parents were "tight" on money "over the summer" - a fact Plaintiff reported to her therapist in January 2018.
- C. **Mr. Mell and Plaintiff Engage in a Sexual Relationship; Upon Information and Belief, Plaintiff's Mother Knows, but Her Focus Is Whether Plaintiff and Mr. Mell Were Talking About Her and Whether Mr. Mell Would Still Be Willing to Remain in Their Lives**

52. Plaintiff alleges that Mr. Mell first engaged in sexual acts with her on June 20, 2017, and that these sexual encounters continued through mid-November of that year. The relationship

was revealed in early December of 2017, when a friend saw illicit photographs of Mr. Mell and Plaintiff on Plaintiff's phone and alerted Plaintiff's school.

53. Plaintiff alleges that Mr. Mell engaged in sexual contact with her in various locations, including his home in New Jersey (where Plaintiff would sometimes spend the night), his home in Nantucket, his office in New Jersey, hotels in New Jersey and New York City and Mr. Mell's private plane.

54. Plaintiff's mother tracked Plaintiff's whereabouts and activities through cellphone applications such as "Life360" and "Find my iPhone."

55. Text messages between Plaintiff and Mr. Mell show that *Mr. Mell was frequently texting and otherwise communicating with Plaintiff's mother during this period.*

56. Plaintiff and her mother exchanged several text messages which demonstrate that E.E. knew something inappropriate was going on between Plaintiff and Mr. Mell, before Plaintiff's school was notified about the relationship in December 2017.

July 2017

57. On July 3, 2017, shortly after Plaintiff alleges her and Mr. Mell's sexual relationship began, Plaintiff's mother texted Plaintiff, "Did Mr mell text you about pick up[?]"

58. Text communications between Plaintiff and her mother continuing into July 2017 are glaring examples of her mother's

knowledge of Plaintiff's and Mr. Mell's relationship and, perhaps worse yet, the fact that her mother's real concern was what Plaintiff and Mr. Mell were saying about Plaintiff's mother and whether Mr. Mell would still stick around. When Plaintiff's mother found out that Plaintiff had been at Mr. Mell's house, Plaintiff's mother texted Plaintiff on July 14, 2017 saying, "[B.B.] I love you. But I know where you were last night." Upon information and belief, Mr. Mell and Plaintiff in fact spent the prior night together.

59. Plaintiff responded, "Ugh ok" and "I hope you don't hate me," to which Plaintiff's mother responded "I could never hate you [B.B.]. I love you."

60. Plaintiff's mother then pivoted to her real concern and asked Plaintiff, "Can you please tell me exactly what you told him that I said." Plaintiff responded, "Just that you found out **that I was over last night** and you are pretty upset."

61. Plaintiff's mother responded, "So nothing about how I think he did this because he was ready to get rid of us . . .?" Plaintiff responded, "I had no idea you thought he was trying to get rid of us," and asked her mother, "So you think he just wanted me over there so you guys would find out?"

62. This exchange took place the same month Mr. Mell deposited a \$25,000 check into E.E.'s bank account.

63. Around that same time, E.E. learned through reviewing her family cellphone bill that Plaintiff and Mr. Mell were frequently texting and calling each other.

October 2017

64. On October 23, 2017, Mr. Mell texted Plaintiff stating, "Hey. Just had an interesting conversation with your mom. Keep me posted if [friend] was on your phone. She as well as all of us are on edge."

65. The friend referred to in this text message is the same friend who ultimately informed the school on December 3, 2017 of Plaintiff's inappropriate contact with Mr. Mell after seeing inappropriate photos of Plaintiff with Mr. Mell on Plaintiff's phone.

November 2017

66. In November 2017, E.E. again caught Plaintiff alone with Mr. Mell.

67. Mr. Mell and Plaintiff thereafter exchanged several text messages about Plaintiff's mother's reaction. Mr. Mell also relayed to Plaintiff the content of his separate discussions with Plaintiff's mother about the matter and told Plaintiff that her mother was just "upset because 2 our [sic] 3 daughters talk to a 50 year old friend more then her. I get it."

68. Plaintiff and her mother also separately texted about the incident, including on November 15, 2017. For at least that

moment of candor, Plaintiff's mother recognized the grave error she made and how it affected Plaintiff - only to later blame Plaintiff for "lying" about what Plaintiff's mother already knew. Plaintiff's mother texted her saying, "I'd like you to tell me the truth. Did you tell him I'm upset." That same day, Plaintiff's mother texted Plaintiff saying, "I've just mad[e] some very bad decisions that have led to things that are upsetting." When Plaintiff asked what her mother meant, E.E. responded, "**I should have never trusted him and let him into our lives.**"

69. On November 19, 2017, Plaintiff's mother texted Plaintiff saying, "[B.B.] I hope you know I love you more than anything in this world. You and our relationship is the most important thing to me. Trust is such an important part of that. It really upset me that after I found out what I found out a few days [ago] that you would still lie to me today. I am believe you [sic] and am glad that you were doing what you were doing today. I just wish you told me. Just broken hearted that our family is in this situation."

70. Plaintiff's mother told her, "**You just shouldn't have hidden it ant shouldn't have lied.**" Accordingly, it appears that Plaintiff's mother was more upset that Plaintiff hid the relationship from her than the fact that her minor daughter was having a sexual relationship with a middle-aged man.

71. Later that day, Plaintiff's mother asked if Plaintiff and Mr. Mell were still texting. Plaintiff told her mother that they were still texting, but that Mr. Mell said he was "sorry for everything" and was not going to text her anymore. Plaintiff's mother bizarrely responded that she "*think[s] he's ready to be done with us.*"

72. Plaintiff responded, "Yes that might be true", and then asked her mother whether she is "happy with him out of our lives." Plaintiff's mother responded, "Well I would only be truly happy if none of this ever happened." Plaintiff responded, "Yes. I understand that. Me too I think." Her mother stated, "That actually makes me really sad Because I can't fix that."

73. Plaintiff stated in response, "Well I know. I mean it doesn't make me really upset but this whole thing has been stressful. It would have been better if he was never in our lives but it does stink because he is nice and he is a good friend."

74. In that same conversation, Plaintiff stated, "I just wish we could all be friends again," to which her mother responded, "*Well I think he's over it too.*"

75. The next day, Plaintiff advised her mother that Mr. Mell stopped following Plaintiff's youngest sister on social media. Plaintiff's mother responded, "Well I think it says something that he unfollowed [her] . . . *Yeah I'm thinking this is for real.*"

76. In other words, even in November 2017, Plaintiff's mother was still concerned and it was apparently still up for debate whether Mr. Mell, who slept with both of E.E.'s school-aged daughters, would still be willing to stick around their family.

77. A few days later, Plaintiff told her mother that Plaintiff and Mr. Mell were still texting but Plaintiff was "trying to stop."

78. Plaintiff's mother acknowledged that she *"know[s] it's not going to happen that quickly."*

79. Plaintiff and her mother attended therapy sessions on November 22 and 29, 2017, where they discussed the "situation" with Mr. Mell. During the November 29 session, Plaintiff and her mother "argued" about Plaintiff's contact with Mr. Mell and his relationship with the older sister.

80. On November 29, 2017, Plaintiff's mother texted her saying, "[B.B.] something is bothering me. I think you need to somehow tell [older sister] about your relationship with him." When Plaintiff asked why, her mother responded, "Because I feel like I'm lying to her and I don't like the way it feels."

81. The next day, Plaintiff told her mother that she felt that the only reason her mother cared about Plaintiff and Mr. Mell communicating was because it would hurt her older sister, C.C. Plaintiff's mother denied that and claimed that the reason

she was upset was because "what happened with [C.C.] was so wrong and so terrible that the thought of that happening to you kills me[.] I'm trying to protect you. Don't you see that?!"

82. In that same conversation, Plaintiff told her mother, "But after the therapist I was totally ok with not talking to him But then you got so crazy that you almost pushed me to want to talk to him again."

83. Plaintiff also told her mother that she did not think her mother's relationship with the older sister "got that bad" when Plaintiff's mother found out about this sister and Mr. Mell's relationship, and observed, "I actually think it made you closer."

84. Plaintiff's mother responded, "When we first found out it was bad between [C.C.] and Me. I was so upset. But [B.B.] that was a very different situation. What happened to her was not her fault. He was the adult and I wanted her to know that. We are now in a different situation. As we have lived through that."

D. With Plaintiff's Parents Taking No Action to Report the Relationship Between Plaintiff and Mr. Mell, Plaintiff's Friend Notifies Plaintiff's School, Which Then Notifies the Authorities

85. As of late November 2017, Plaintiff's mother did not notify any law enforcement authorities of the underaged sexual relationship Plaintiff had with Mr. Mell - nor, upon information

and belief, had Plaintiff's mother taken any steps toward, or even considered, doing so.

86. On December 4, 2017, Plaintiff's school learned from Plaintiff's friend of Plaintiff's sexual contact with Mr. Mell.

87. That day, Plaintiff's mother texted her, *"What ever you do don't discuss any details of your relationship with anyone. Don't admit that you did anything."*

88. In other words, well aware that Plaintiff herself could not face liability under these circumstances, the mother was more concerned about her own potential liability for allowing and condoning this relationship. Toward that end, on December 7, 2017, Plaintiff's mother instructed her to delete evidence, stating, "Don't forget to delete snapchat." Plaintiff responded, "Thanks for reminding me." Plaintiff then confirmed to her mother, "I just deleted it." Plaintiff alleges in this case that she communicated with Mr. Mell via SnapChat.

89. After unsuccessfully considering how to leverage the criminal proceedings to obtain a monetary payment from Mr. Mell, Plaintiff filed this lawsuit on October 2, 2019.

COUNT I

NEGLIGENCE

90. S.B. Mell, repeats and realleges each of the previous allegations as if set forth at length herein.

91. Plaintiff's parents breached their duty of reasonable

care to Plaintiff by creating a dangerous condition in the family home and within the family through allowing Mr. Mell to spend substantial time with Plaintiff after Plaintiff's parents learned of Mr. Mell's inappropriate sexual propensities.

92. Despite learning of Mr. Mell's inappropriate sexual proclivities via his inappropriate relationship with their teenage daughter, C.C., Plaintiff's parents formed a close relationship with Mr. Mell and allowed him to become deeply enmeshed with their family.

93. Plaintiff and her younger sister initially disliked Mr. Mell because of his inappropriate involvement with their older sister; however, Plaintiff's mother and/or Plaintiff's father continued to expose their daughters to Mr. Mell.

94. In fact, Plaintiff's parents condoned and encouraged Mr. Mell to spend substantial time with their daughters and accepted gifts and other perquisites from Mr. Mell after learning of his inappropriate sexual conduct with C.C.

95. Specifically, Plaintiff's parents learned that Mr. Mell had a sexual relationship with their then 17-year-old daughter, C.C., in or around February 2016. Instead of notifying authorities or taking other steps to protect their children from Mr. Mell, such as telling him to stay away from C.C. and their family, Plaintiff's parents thereafter welcomed Mr. Mell into their family with open arms.

96. For example, Plaintiff's parents allowed their daughters to take numerous flights with Mr. Mell on his private plane and helicopter between fall of 2016 and summer of 2017. In some instances, Plaintiff's mother and/or Plaintiff's father permitted Plaintiff to fly alone with Mr. Mell. In other instances, Plaintiff's mother and/or Plaintiff's father joined their daughters on private flights with Mr. Mell.

97. Plaintiff was in constant contact with Mr. Mell between June 2017 and December 2017 and spent time alone with him at his home, Plaintiff's home, hotels and Mr. Mell's vacation home in Nantucket.

98. At various times in 2017, Plaintiff's mother communicated to Plaintiff that she was aware of Plaintiff's regular contact with Mr. Mell and that Plaintiff was with Mr. Mell alone in person. For example, in July 2017, Plaintiff's mother told Plaintiff she knew Plaintiff was at Mr. Mell's house the night before, but instead of prohibiting Plaintiff from continuing to see Mr. Mell, Plaintiff's mother expressed concern that Mr. Mell wanted to "get rid of" Plaintiff's family.

99. In November 2017, after Plaintiff's mother discovered Plaintiff was still talking to and seeing Mr. Mell, she again lamented to Plaintiff that she thought Mr. Mell was "ready to be done with us." *Plaintiff's mother's biggest concern appeared to be whether Plaintiff told Mr. Mell that she was upset.*

100. Later in that same conversation, Plaintiff's mother admitted fault for her affirmative actions telling Plaintiff, *"I've just mad[e] some very bad decisions that have led to things that are upsetting."* When Plaintiff asked what her mother meant, E.E. responded *"I should have never trusted him and let him into our lives."*

101. A few days later, Plaintiff told her mother that it *"would have been better if he [Mr. Mell] was never in our lives."*

102. Shortly thereafter, when Plaintiff told her mother she was trying to stop texting and seeing Mr. Mell, Plaintiff's mother acknowledged that she *"know[s] it's not going to happen that quickly."*

103. A few days later, when Plaintiff advised her mother that Mr. Mell had *"unfollowed"* Plaintiff's youngest sister on social media, Plaintiff's mother told Plaintiff, *"Yeah I'm thinking this is for real."*

104. Later in November 2017, Plaintiff's mother told Plaintiff she should tell her older sister about her *"relationship"* with Mr. Mell because Plaintiff's mother felt like she was *"lying"* to C.C. and did not *"like the way it feels."*

105. At the same time, Plaintiffs' parents accepted countless financial benefits from Mr. Mell, including but not limited to: \$25,000 deposits into investment accounts Mr. Mell set up for Plaintiff's mother and C.C.; a \$25,000 deposit into

Plaintiff's mother's bank account and various other funds Mr. Mell provided in cash to Plaintiff's mother; flying lessons for Plaintiff; tuition for Plaintiff's private school; and tickets to several concerts.

106. But for Plaintiff's mother's and/or Plaintiff's father's negligence and their affirmative acts of keeping Mr. Mell so close to the family thereby creating a dangerous condition, Plaintiff would have never been sexually abused by Mr. Mell. In fact, Plaintiff's mother acknowledged in text messages to Plaintiff that she was to blame for Mr. Mell's involvement in Plaintiff's and her family's lives.

107. Plaintiff suffered harm as a result of Plaintiffs' parents' negligence.

108. Plaintiff's parents' affirmative acts of integrating Mr. Mell into their family and allowing and encouraging Plaintiff to spend time with, and in some instances be alone with, a person whom they knew had an inappropriate sexual propensities toward minors through his relationship with their teenage daughter, is not an "exercise of parental authority" because it does not involve matters of customary child care, discipline or supervision, and had no connection to any unique philosophy of child-rearing, nor was it designed to promote Plaintiff's physical, moral, emotional and intellectual growth.

109. Instead, D.D. and E.E.'s conduct simply involves

parents who exposed their child to the risk of injury by not preventing, but rather, allowing and encouraging, Mr. Mell to form a close relationship with Plaintiff.

110. As such, D.D. and E.E. are not protected from liability for Plaintiff's injuries by the "limited" doctrine of parental immunity.

COUNT II

WILLFUL AND/OR WANTON FAILURE TO SUPERVISE AND PROTECT PLAINTIFF AND PREVENT THE ALLEGED SEXUAL ABUSE

111. S.B. Mell, repeats and realleges each of the previous allegations as if set forth at length herein.

112. If and to the extent any of the above acts and omissions on the part of Plaintiff's parents fall under the exercise of parental authority, D.D. and E.E. are still liable because their conduct amounted to willful and/or wanton failure to supervise Plaintiff.

113. Conduct is willful or wanton if the defendant, "with knowledge of existing conditions, and conscious from such knowledge that injury will likely or probably result from his conduct, and with reckless indifferent to the consequences, consciously and intentionally does some wrongful act or omits to discharge from duty which produces the injurious result."

114. Willful or wanton misconduct does not require a positive intent to injure.

115. E.E. and/or D.D. had knowledge that Mr. Mell had inappropriate sexual propensities toward minors by virtue of his relationship with their teenage daughter, C.C., and therefore knew that allowing Mr. Mell to become a part of Plaintiff's lives would likely or probably result in injury to Plaintiff. Nevertheless, E.E. and/or D.D. acted with reckless indifference to those consequences and permitted, condoned and/or encouraged Mr. Mell to spend time with Plaintiff, while accepting money and numerous gifts from Mr. Mell for themselves and their children.

116. Indeed, when plaintiff's mother learned that Plaintiff was calling and texting with Mr. Mell regularly and was spending time alone with him, her biggest concern was not her daughter's safety but was whether Mr. Mell wanted to be "done with" Plaintiff's family (and, therefore, whether the countless gifts and favors would cease).

117. Such circumstances constitute willful and wanton misconduct and willful and wanton failure to supervise.

118. Accordingly, D.D. and E.E. are liable for Plaintiff's alleged injuries.

COUNT III

SEXUAL ABUSE UNDER THE CHILD SEXUAL ABUSE ACT, N.J.S.A. 2A:61B-1

119. S.B. Mell, repeats and realleges each of the previous allegations as if set forth at length herein.

120. The Child Sexual Abuse Act, N.J.S.A. 2A:61B-1 ("CSSA"), provides for private civil causes of action for sexual abuse.

121. The CSSA provides that a parent who "knowingly permits or acquiesces in sexual abuse by any other person also commits sexual abuse." N.J.S.A. 2A:61B-1(a)(1).

122. As demonstrated through text messages between Plaintiff and her mother, and by the various other facts set forth herein above, E.E. knowingly permitted and/or acquiesced in Mr. Mell's sexual abuse of Plaintiff as early as July 2017.

123. Indeed, in November 2017, E.E. told Plaintiff that E.E. wanted to tell the older sister about Plaintiff and Mr. Mell's "relationship" because she felt guilty.

124. D.D. and E.E. are liable for sexual abuse under N.J.S.A. 2A:61B-1(a)(1).

COUNT IV

CONTRIBUTION AND INDEMNIFICATION

125. S.B. Mell, repeats and realleges each of the previous allegations as if set forth at length herein.

126. While continuing to expressly deny all of Plaintiff's allegations as to liability and damages, if Plaintiff sustained damages, D.D. and E.E. are liable for such damages.

127. Any obligation imposed upon Gulfstream is merely passive, secondary, technical, imputed and/or derivative, while D.D. and E.E.'s liability is primary, in that they knew of Mr.

Mell's sexually inappropriate propensities by virtue of his conduct toward their oldest daughter, C.C., and therefore knew that injury would likely or probably result if they allowed Mr. Mell to have contact with their younger daughters, but nevertheless consciously and intentionally allowed Mr. Mell to have frequent contact with Plaintiff and failed to protect Plaintiff from Mr. Mell, with reckless indifference to the consequences, while accepting money, gifts and other perquisites from Mr. Mell.

128. Additionally, D.D. and E.E. are primarily liable under N.J.S.A. 2A:61B-1(a)(1), which provides that "[a] parent . . . who knowingly permits or acquiesces in sexual abuse by any other person also commits sexual abuse."

129. D.D. and E.E. knowingly permitted and/or acquiesced in Mr. Mell's alleged sexual abuse of Plaintiff (as well as their older daughter, C.C., who did not bring claims against Mr. Mell).

130. S.B. Mell, alleges that the damages alleged by Plaintiff in the Complaint were caused by D.D. and E.E.'s wanton and/or willful disregard of Plaintiff's safety and their wanton and/or willful failure to protect Plaintiff from the alleged sexual abuse and sexual misconduct of Mr. Mell.

131. By reason of the facts and circumstances set forth above, if Plaintiff recovers any amounts from S.B. Mell, then S.B. Mell, is entitled to indemnity from D.D. and E.E., including

but not limited to indemnification, attorney's fees, cost of suit and any other relief as the Court may deem appropriate.

COUNT V

TORT COMPELLING LITIGATION COSTS

132. S.B. Mell, repeats and realleges each of the previous allegations as if set forth at length herein.

133. The tortious conduct of D.D. and E.E. alleged herein caused this litigation against S.B. Mell .

134. As a result, S.B. Mell, may recover from D.D. and E.E. that portion of the expenses S.B Mell, has incurred, and will continue to incur, in connection with defending against this litigation, including all attorneys' fees and costs.

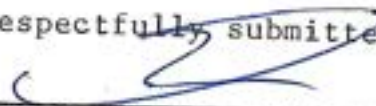
WHEREFORE, S.B. Mell demands judgment against D.D. and E.E. as follows:

- (a) for damages, including compensatory damages, reasonable attorneys' fees, together with interest and costs of suit;
- (b) over and against D.D. and E.E., by way of full indemnification against D.D. and E.E. for any and all sums which Gulfstream may be required to pay in this action, together with costs of suit, interest; and
- (c) for such other relief as the Court deems reasonable and just.

CERTIFICATION PURSUANT TO RULE 4:5-1(b) (2)

I hereby certify that to my knowledge, the matter in controversy is not the subject of any other action pending in any court or of a pending arbitration proceeding and no other action or arbitration proceeding is contemplated. However, there was a criminal action against Mr. Mell arising out of the sexual abuse Plaintiff alleges in this action, entitled *USA v. Mell*, Case No. 3:18-cr-00757, in the United States District Court for the District of New Jersey. Additionally, there was a divorce action brought in the Chancery Division-Family Part, Superior Court of New Jersey, Somerset County, entitled *Mell v. Mell*, Docket No. FM-18-7824-28, which involved certain matters alleged herein.

Respectfully submitted,


Steven Bradley Mell, pro se.

Dated: October 12, 2023